

SENATE No. 3027

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, April 2, 2026.

The committee on The Judiciary to whom was referred the petition (accompanied by bill, Senate, No. 1109) of Barry R. Finegold, Mark C. Montigny and Michael O. Moore for legislation relative to preventing suicide, report the accompanying bill (Senate, No. 3027).

For the committee,
Lydia Edwards

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An Act criminalizing harassment resulting in serious bodily injury or death of another.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 265 of the General Laws is hereby amended by inserting after section XX the
2 following section: Section XX.

3 (a) For the purposes of this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:

5 “Cause” or “causation”, an act which, in a natural and continuous sequence, results in
6 death or serious bodily injury, and without which death or injury would not have occurred.

7 “Coercive control”, a pattern of behavior intended to threaten, intimidate, harass, isolate,
8 control, coerce or compel compliance of another person that causes that person to reasonably
9 fear physical harm or have a reduced sense of physical safety or autonomy.

10 “Harassment”, an act directed at a specific person that seriously alarms or annoys such
11 person and would cause a reasonable person to suffer substantial emotional distress including,
12 but not limited to, an act conducted by mail or by use of a telephonic or telecommunication

device or electronic communication device including, but not limited to, a device that transfers signs, signals, writing, images, sounds, data or intelligence of any nature, transmitted in whole or in part by a wire, radio, electromagnetic, photoelectronic or photo-optical system including, but not limited to, electronic mail, internet communications, instant messages and facsimile communications.

“Intellectual disability”, a significant limitation in both intellectual functioning and adaptive behavior.

“Mental illness”, a diagnosable mental, behavioral, or emotional disorder.

“Serious bodily injury”, bodily injury which results in a permanent disfigurement, protracted loss or impairment of a bodily function, limb or organ, or substantial risk of death.

(b) Any person who:

(1) willfully intimidates, threatens, harasses, or exerts undue influence or coercive control over another person; and

(2) such conduct causes serious bodily injury or death to the other, whether or not self-inflicted, shall be punished by imprisonment in the state prison for not more than 3 years, or in the house of correction for not more than 2 years. Any person who is placed on probation under this section shall be required to complete an educational program established by the District Attorney’s Office that commenced the prosecution.

(c) Any person who engages in the conduct described in subsection (b) and:

(1) knew or should have known that the victim has a mental illness or an intellectual disability as defined in section (a); or

34 (2) there exists more than a 10 year age difference between the defendant and the victim
35 and the victim is under 18 years of age; or

36 (3) the defendant was a mandated reporter as defined in section 21 of chapter 119 shall be
37 punished by imprisonment in the state prison for not more than 5 years, or the house of
38 correction for not more than two and a half years. Prosecutions commenced under this subsection
39 shall neither be continued without a finding nor placed on file.